

Chapter 5

BUILDINGS AND BUILDING REGULATIONS*

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ARTICLE I. IN GENERAL**Sec. 5-1. Notice.**

Whenever the chief building and code enforcement officer or his designee determines the existence of a violation of any provision of this chapter 5 by any person, he shall so notify the person, in writing by certified mail at the person's last known mailing address, of the specific violation, requiring abatement of the violation within ten (10) days of the date of the notice, unless the violation is such that it is determined to be an unsafe and dangerous condition of a structure or equipment or an imminent hazard. The chief building and code enforcement officer or his designee may issue a stop work order until the violation has been abated.

(Ord. No. 461, § 1, 6-8-05)

Sec. 5-2. Continuance of work after stop work order.

It is unlawful for any person to continue any work in or about the structure after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition.

(Ord. No. 230, § 9, 7-13-83; Ord. No. 461, § 1, 6-8-05)

Editor's note—Formerly numbered as § 5-1.

Sec. 5-3. Violation.

It is unlawful for any person to violate a provision of any code adopted by this chapter or to fail to comply with any of the requirements thereof or to erect, construct, alter or repair a building or structure in violation of an approved plan or directive of the building official, or of a permit or certificate issued under the provisions of such codes.

(Ord. No. 230, § 8, 7-13-83; Ord. No. 461, § 1, 6-8-05)

Editor's note—Formerly numbered as § 5-2.

Sec. 5-4. Penalty.

Any person who violates any provision of this chapter shall be subject to the provisions of RSA 31:39-d, RSA 147:4; RSA 147:9, RSA 676:17, RSA 676:17-a, and/or RSA 676:17-b, including but

not limited to a penalty not to exceed two hundred seventy-five dollars (\$275.00) for the first offense for each violation for each day and five hundred fifty dollars (\$550.00) for subsequent offenses for each violation for each day that such violation(s) is (are) found to continue after the date by which the person is ordered to abate such violation or, in the event the violation is determined to be an unsafe and dangerous condition of a structure or equipment or an imminent hazard, the date on which the person receives written notice of the violation. (Ord. No. 461, § 1, 6-8-05; Ord. No. 542, § 1, 4-8-2015)

Secs. 5-5—5-25. Reserved.

ARTICLE II. ADMINISTRATION*

DIVISION 1. GENERALLY

Secs. 5-26—5-40. Reserved.

DIVISION 2. BUILDING CODE BOARD OF APPEALS†

Sec. 5-41. Created, membership; terms.

There is hereby established a building code board of appeals consisting of five (5) members and two (2) alternates appointed by the city council. Members shall be qualified by experience and training to rule on matters pertaining to building construction in one (1) or more of the following fields: architecture, engineering, construction, mechanical, plumbing or electrical. Each regular and alternate member shall be appointed for a

***Cross reference**—Duties of the building department regarding houses, buildings, § 7-28.

†**Editor's note**—Ord. No. 541, § 1, adopted Feb. 11, 2015, amended Div. 2, in its entirety to read as herein set out. Former Div. 2, §§ 5-41—5-47, pertained to the board of appeals and derived from Ord. No. 230, § 10(A—H), 7-13-1983; Ord. No. 239, § 3, 2-8-1984; and Ord. No. 461, § 2, 6-8-2005. See also the Code Comparative Table.

Cross reference—Boards, committees, commissions, § 2-26 et seq.

term of three (3) years, with no more than two (2) appointments of regular members and one (1) appointment of an alternate member occurring in any single year.
(Ord. No. 541, § 1, 2-11-2015)

Sec. 5-42. Officers and procedures.

Annually, the board shall elect, from the regular members, a chairman and a vice-chairman. The chairman shall schedule all meetings of the board and preside at all meetings. The board shall establish rules and regulations not inconsistent with the provisions of this Code and state law.
(Ord. No. 541, § 1, 2-11-2015)

Sec. 5-43. Quorum and conflicts of interest.

Three (3) members shall constitute a quorum. No member shall pass on any question in which that member has any conflicting interest and each member shall promptly notify the chairman of any actual or apparent conflict of interest which may arise. Any member of the board and any party before the board may challenge any member for an alleged conflict of interest. Any member so challenged shall not hear that case unless, by a vote, the remaining members unanimously agree that there is no conflict of interest. In the event a member excuses him or herself or is challenged for a conflict of interest, or a member is absent, the chairman shall appoint one (1) of the alternate members to hear that case.
(Ord. No. 541, § 1, 2-11-2015)

Sec. 5-44. Referral to zoning board of adjustment.

In the event, due to absences and/or challenges, five (5) members of the board of appeals (including alternates) cannot be convened to hear a particular case, the matter shall be referred to the zoning board of adjustment to hear that case.
(Ord. No. 541, § 1, 2-11-2015)

Sec. 5-45. Decisions.

The building code board of appeals shall affirm, modify or reverse the decision of the building code or fire code inspection

officials by an affirmative vote of at least three (3) members. A copy of the decision shall be furnished to the appellant, and a copy shall be filed in the office of the building inspector. Any person aggrieved by a decision of the building code board of appeals may appeal such decision to the superior court, under the provisions of RSA 677:16, within thirty (30) days after the notice of decision is issued, and not thereafter.
(Ord. No. 541, § 1, 2-11-2015)

Sec. 5-46. Powers and duties.

The building code board of appeals shall hear appeals from decisions of the building code and fire inspection officials:

- (1) Regarding the interpretation of all standards adopted under chapter 5 and chapter 6 of the Claremont City Code; and
- (2) Related to the rehabilitation or renovation of an existing building or other structure.

Additionally, determinations by the building code board of appeals shall take into account considerations of life safety protection as set forth in this Code and state law and regulation.
(Ord. No. 541, § 1, 2-11-2015)

Sec. 5-47. Application for appeal.

The owner or authorized agent of a building or structure or any other aggrieved person may appeal to the building code board of appeals from a decision of the building code or fire code inspection official interpreting the standards adopted under chapter 5 and chapter 6 of this Code within twenty (20) days after the date of the decision of the building code or fire code inspection official, specifying the grounds thereof and accompanied by all documents in support of the appeal.
(Ord. No. 541, § 1, 2-11-2015)

Sec. 5-48. Limitations.

This division shall not apply to, and the board of appeals shall have no jurisdiction with regard to, appeals from interpretation

of chapter 11 of this Code or orders issued by the building code official, health officer or zoning administrator pursuant to RSA ch. 147 and/or RSA ch. 155-B.
(Ord. No. 541, § 1, 2-11-2015)

Secs. 5-49—5-75. Reserved.

DIVISION 3. RESERVED*

DIVISION 4. CHIEF BUILDING AND CODE
ENFORCEMENT OFFICER OR HIS/HER DESIGNEES†

Sec. 5-76. Enforcement.

Pursuant to RSA 31:39-d, the chief building and code enforcement officer or his/her designees shall be responsible for enforcement of any municipal code, ordinance, by-law or regulation, if such offense is classified as a violation under applicable law, and decisions of the building code board of appeals. The chief building and code enforcement officer or his/her designees may issue warnings, notice, summons or citations to appear in circuit court, or a local ordinance or land use citation to any person, natural or otherwise, including but not limited to any owner, landlord, agent, tenant, lessee or sublessee who shall violate, or permit, allow or suffer any violation of, a provision of this Code, or any city ordinance, by-law or regulation.
(Ord. No. 230, § 11, 7-13-83; Ord. No. 461, § 3, 6-8-05; Ord. No. 542, § 1, 4-8-2015)

Secs. 5-77—5-90. Reserved.

***Editor's note**—Ord. No. 541, § 2, adopted Feb. 11, 2015, repealed Div. 3, § 5-61, which pertained to creation of the code review board and derived from Ord. No. 230, § 12, 7-13-1983.

†**Cross reference**—Building inspector to enforce mobile home and recreational vehicle provisions and notify city assessor of any permit issued under those provisions, § 10-26.

DIVISION 5. PERMIT FEES

Sec. 5-91. Fee schedules.

The building permit fee schedules are on file in the city manager's office. The fee schedule or any other fee schedule adopted or amended in accordance with RSA 156-A:1-b shall be incorporated into this chapter and shall apply to all permits issued under the provisions of all of the codes adopted by this chapter.

(Ord. No. 230, § 7, 7-13-83)

Secs. 5-92—5-105. Reserved.

ARTICLE III. BUILDING STANDARDS*

Sec. 5-106. Purpose.

The purpose of these articles III, IV, V and VI is to provide minimum standards for the construction of residential and non-

***Editor's note**—Ord. No. 461, § 4, adopted June 8, 2005, repealed former Art. III, §§ 5-106, 5-107 in its entirety and enacted new provisions as herein set out. Former Art. III pertained to similar subject matter and derived from Ord. No. 230, §§ 2—4, 7-13-83; Ord. No. 239, § 2, 2-3-84; Ord. No. 283, §§ 2, 3, 1-13-88; Amendments of 3-5-91.

residential property and structures in order to safeguard the public health, safety and welfare of the city. Copies of all codes related to building standards adopted herein shall be kept on file in the office of the city clerk and the office of the chief building and code enforcement officer, which copies shall all be for the use and examination by the public.

(Ord. No. 461, § 4, 6-8-05)

Sec. 5-107. Building code adopted.

The International Building Code 2000, and any amendments, revisions and re-adoptions, is hereby adopted by reference, in accordance with amendments adopted by the State Building Code Review Board by regulation Part Bcr 303, and its applicable appendices and exhibits.

(Ord. No. 461, § 4, 6-8-05)

Sec. 5-108. International Residential Code for One & Two Family Dwellings adopted.

The International Residential Code for One & Two Family Dwellings 2003, and any amendments, revisions and re-adoptions, is hereby adopted by reference, in accordance with amendments adopted by the State Department of Safety by regulation Part Saf-C 3303, and its applicable appendices and exhibits.

(Ord. No. 462, § 1, 6-8-05)

Secs. 5-109—5-125. Reserved.

ARTICLE IV. ELECTRICAL STANDARDS*

Sec. 5-126. Electrical code adopted.

The National Electrical Code 2002, and any amendments, revisions and re-adoptions, is hereby adopted by reference, in accordance with amendments adopted by the State Building Code Review Board by regulation Part Bcr 307.

(Ord. No. 230, §§ 2, 3, 7-13-83; Ord. No. 239, § 2, 2-8-84; Ord. No. 283, §§ 2, 3, 1-13-88; Amended, 3-5-91; Ord. No. 461, § 4, 6-8-05)

***Cross references**—Purpose of Arts. III, IV, V, and VI, § 5-106; fire prevention and protection, Ch. 6; housing, Ch. 7; housing standards, § 7-26 et seq.; mobile homes, recreational vehicles and mobile home and recreational vehicle parks, Ch. 10; mobile homes, § 10-46 et seq.; utilities, Ch. 20.

Secs. 5-127—5-140. Reserved.

ARTICLE V. PLUMBING STANDARDS*

Sec. 5-141. Plumbing code adopted.

The International Plumbing Code 2000, and any amendments, revisions and re-adoptions, is hereby adopted by reference, in accordance with amendments adopted by the State Building Code Review Board by regulation Part Bcr 304.
(Ord. No. 461, § 4, 6-8-05)

Secs. 5-142—5-160. Reserved.

ARTICLE VI. MECHANICAL STANDARDS†

Sec. 5-161. Mechanical code adopted.

The International Mechanical Code 2000, and any amendments, revisions and re-adoptions, is hereby adopted by reference, in accordance with amendments adopted by the State Building Code Review Board by regulation Part Bcr 305.
(Ord. No. 461, § 4, 6-8-05)

***Editor's note**—Ord. No. 461, § 4, adopted June 8, 2005, repealed former Art. V, §§ 5-141, 5-142, in its entirety and enacted new provisions as herein set out. Former Art. V pertained to similar subject matter and derived from Ord. No. 230, §§ 2, 3, 5, 7-13-83; Ord. No. 239, § 2, 2-8-84; Ord. No. 283, §§ 2, 3, 1-13-88; Amendments of 3-5-91.

Cross references—Purpose of Arts. III, IV, V, and VI, § 5-106; housing standards, § 7-26 et seq.; services, equipment and facilities for plumbing under the housing code, § 7-39; mobile homes, § 10-46 et seq.; utilities, Ch. 20; sanitary sewer system, § 20-26 et seq.; water, § 20-121 et seq.; cross-connection control, § 20-136 et seq.

†Editor's note—Ord. No. 461, § 4, adopted June 8, 2005, repealed former Art. VI, §§ 5-161, 5-162, in its entirety and enacted new provisions as herein set out. Former Art. VI pertained to similar subject matter and derived from Ord. No. 230, §§ 2, 3, 6, 7-13-83; Ord. No. 239, § 2, 2-8-84; Ord. No. 283, §§ 2, 3, 1-13-88; Amendments of 3-5-91.

Cross references—Purpose of Arts. III, IV, V, and VI, § 5-106; housing, § 7-26 et seq.; mobile homes, § 10-46 et seq.

ARTICLE VII. ENERGY STANDARDS**Sec. 5-162. Energy conservation code adopted.**

The International Energy Conservation Code 2000, and any amendments, revisions and re-adoptions, is hereby adopted by reference, in accordance with amendments adopted by the State Building Code Review Board by regulation Part Bcr 306.
(Ord. No. 461, § 4, 6-8-05)

ARTICLE VIII. PROPERTY MAINTENANCE STANDARDS**Sec. 5-163. Purpose.**

The purpose of this article VIII is to provide minimum property maintenance standards for existing residential and non-residential property and structures in order to safeguard the public health, safety and welfare of the city. Copies of all codes related to building standards adopted herein shall be kept on file in the office of the city clerk and the office of the chief building and code enforcement officer, which copies shall all be for the use and examination by the public.
(Ord. No. 465, § 1, 9-14-05)

Sec. 5-164. Property maintenance code adopted.

The International Property Maintenance Code 2003, and any amendments, revisions and re-adoptions thereto, is hereby adopted by reference.
(Ord. No. 465, § 1, 9-14-05)

Sec. 5-165. Local modifications to International Property Maintenance Code of 2003.

The International Property Maintenance Code 2003, and any amendments, revisions and re-adoptions thereto, as adopted by section 5-163, is amended as follows for application to the City of Claremont.

- (1) All references to "applicable jurisdiction" are amended in all instances to the "City of Claremont."

- (2) All references to the International Existing Building Code and the International Zoning Code shall be of no force or effect until such time as said codes are enacted and adopted by the City of Claremont.
- (3) All references to the International Fire Code are amended in all instances to "currently adopted versions of state and local fire and life safety standards, including but not limited to NFPA 1 and NFPA 101.
- (4) All references to "department of property maintenance inspection" are amended in all instances to the "building and code enforcement office."
- (5) All references to the "chief appointing authority" are amended in all instances to the "city manager."
- (6) All references to the "code official" are amended in all instances to the "chief building and code enforcement officer or his or her designee."
- (7) *Section 102.7*. Referenced codes and standards also include those adopted by the State of New Hampshire and the City of Claremont.
- (8) *Section 103.3 Deputies*. Delete the authority of the code official to appoint deputies and revise so that the section shall read:

"In accordance with the prescribed procedures of this jurisdiction and with the concurrence of the appointing authority, the code official may have deputy code officials, and other related technical officers and inspectors."
- (9) *Section 103.5 Fees*. Delete.
- (10) *Section 104.2 Rule-Making Authority*. Delete.
- (11) *Section 104.4 Right of Entry*. Any right of entry is permitted only to the extent authorized by state and local law and regulation.
- (12) *Section 105.1 Modifications*. Delete.
- (13) *Section 106.3 Prosecution of Violation*. Delete.

- (14) *Section 107.1 Notice to Person Responsible.* Delete section references; notice of violations shall be pursuant to state and local law and regulation.
- (15) *Section 107.2 Forms and Section 107.3 Method of Service.* Delete.
- (16) *Section 107.4 Penalties.* Delete section reference; penalties shall be pursuant to state and local law and regulation.
- (17) *Section 108.1 General.* Insert at the end of the section that condemnation shall be pursuant to state and local law and regulation.
- (18) *Section 108.3 Notice.* Delete section reference; notice of condemnation shall be pursuant to state and local law regulation.
- (19) *Sections 109.3 Closing Streets, 109.4 Emergency Repairs, 109.5 Costs of Emergency Repairs and 109.6 Hearings,* inclusive. Delete.
- (20) *Section 110.1 General.* Delete "two years" and insert in its place "twelve (12) consecutive months."
- (21) *Section 110.2 Notices and Orders.* Delete section reference; order for demolition shall be pursuant to state and local law regulation.
- (22) *Section 110.4 Salvage Materials.* Delete.
- (23) *Sections 111.1 through 111.8, inclusive.* Delete. Means of appeal shall be as set forth in Article II of this Chapter 5.
- (24) *Section 202 General Definitions.* Add to the definition of Dwelling Unit: "and as defined in Chapter 22 of the Claremont City Code.
- (25) *Section 202 General Definitions.* Add to the definition of Inoperable Motor Vehicle: "and as defined in New Hampshire RSA Chapter 236."
- (26) *Section 202 General Definitions.* Delete definition of *Strict Liability Offense*.

- (27) *Section 302.4 Weeds.* Delete the first paragraph of the section and insert in its place:

"All premises and exterior property shall be maintained free from excessive plant growth and weeds."
- (28) *Section 304.2 Protective Treatment.* Delete all after the first sentence.
- (29) *Sections 304.3 Premises Identification, 304.14 Insect Screens, 304.17 Guards for Basement Windows, 304.18 Building Security, 304.18.2 Windows and 304.18.3 Basement Hatchways.* Delete.
- (30) *Section 304.18.1 Doors.* All references to "deadbolt" are amended in all instances to "security."
- (31) *Section 402.1 Habitable Spaces.* Delete all after the first sentence, including the Exception.
- (32) *Section 404.3 Minimum Ceiling Heights.* Delete entire section, including the Exception.
- (33) *Section 404.4.1 Area for Sleeping Purposes.* At the end of the section add: "and shall meet all egress requirements under fire and life safety standards adopted by the State of New Hampshire."
- (34) *Sections 404.4.2 Access from Bedrooms and 404.5.1 Sleeping Area.* Delete.
- (35) *Section 404.4.3 Water Closet Accessibility.* Delete all after the word "lavatory in the second line."
- (36) *Section 404.6 Efficiency Unit.* Delete subsection 1.
- (37) *Section 602.2 Residential Occupancies.* Change "68oF (20oC)" to "65oF (18oC)."
- (38) *Section 602.3 Heat Supply.* Insert October 1 to May 31 where indicated, and change "68oF (20oC)" to "65oF (18oC)."
- (39) *Section 602.4 Occupiable Work Spaces.* Insert October 1 to May 31 where indicated.

(40) *Sections 704.1-704.4*, inclusive. Modify in accordance with the provisions of the State Fire Code, as adopted by Department of Safety by regulation Part Saf-C 6015. (Ord. No. 465, § 1, 9-14-05)

Sec. 5-166. Notice on conveyance.

Notice of noncompliance with any provisions of this article, whether based on actual or constructive knowledge of such deficiency, shall be included with the conveyance by any means of any interest in property or structures subject to the provisions of this article.

(Ord. No. 465, § 1, 9-14-05)

Secs. 5-167—5-169. Reserved.

**ARTICLE IX. OUTDOOR WOOD-FIRED HYDRONIC
HEATERS**

Sec. 5-170. Purpose.

The purpose of this article IX is to provide standards for the installation and operation of outdoor wood-fired hydronic heaters (OWHHs) and outdoor wood boilers (OWBs), as defined by Session Laws of 2008, Chapter 362, in order to safeguard the public health, safety and welfare of the city.

(Ord. No. 501, § 1, 10-8-08)

Sec. 5-171. Chapter 362, Session Laws of 2008 adopted.

Chapter 362, Session Laws of 2008, and any amendments, revisions and re-adoptions thereto, is hereby adopted by reference.

(Ord. No. 501, § 1, 10-8-08)

Sec. 5-172. Definitions.

Clean wood, as defined in RSA 125-R:1, means wood that has no paint, stains or other coatings and wood that has not been treated or preserved, including but not limited to treatment

with copper chromium arsenate, creosote or pentachlorophenol. The term does not include construction and demolition debris as defined in RSA 149-M:4.

Code official means a person authorized to inspect and enforce the provisions of state law or this Code.

Commercial-size outdoor wood-fired hydronic heater means an OWHH with a rated thermal output of greater than three hundred fifty thousand (350,000) Btu/hr as rated by the United States Environmental Protection Agency (EPA) Method 28 OWHH Test Method, as may be amended, revised or re-adopted from time to time.

Distribute or sell means to distribute, sell, advertise for sale, offer for sale, lease, ship, deliver for shipment, release for shipment, receive for delivery or offer to deliver. This term does not include the distribution or sale by a manufacturer of an OWHH or OWB intended for installation outside the City of Claremont.

Installation or installed unit means any unit installed and operational at the intended location of use prior to the enactment of this article.

Manufactured means built, capable of being installed and made operational, and ready for shipment.

Nuisance means any condition constituting a nuisance pursuant to the provisions of this Code, RSA ch. 147, RSA ch. 674, state regulation or court decision.

Outdoor wood hydronic heater means those devices described in RSA 125-R:1, V, including outdoor wood boilers, generally and collectively referred to as "OWHH."

Permitted fuel means clean wood, wood pellets made from clean wood and home heating oil, natural gas or propane that complies with all applicable sulfur limits and is used as a starter or supplemental fuel for dual-fired OWHHs.

Prohibited fuels means any fuel burned in an OWHH other than permitted fuels. Prohibited fuel includes but is not limited to any wood that does not meet the definition of clean wood,

garbage, refuse, tires, yard waste, materials containing plastic or rubber, petroleum products, including asphalt products, other than those that are permitted fuels, paints and paint thinners, chemicals, coal, plywood, particleboard, manure or other animal products or wastes.

Residential-size outdoor wood-fired hydronic heater means an OWHH with a rated thermal output of three hundred fifty thousand (350,000) Btu/hr or less as rated by the EPA Method 28 OWHH Test Method, as may be amended, revised or re-adopted from time to time.

Sale means the transfer of ownership or control, including but not limited to a possessory interest.

(Ord. No. 501, § 2, 10-8-08; Ord. No. 519, § 1, 3-9-2011)

Sec. 5-173. Nuisance.

No person shall operate an OWHH in such a manner as to create a public or private nuisance. For purposes of this article and in addition to "nuisance" as defined elsewhere in this Code, by state law or regulation or court decision, a nuisance is deemed to be created by an OWHH operated through use of prohibited fuels or if operated in excess of the noise limitations for the zoning district in which it is located.

(Ord. No. 501, § 2, 10-8-08)

Sec. 5-174. Installation and siting.

(a) No person shall install or allow the installation of any OWHH that is not at least one hundred (100) feet from any property line, is no less than fifty (50) feet from the structure it serves, and is not at least two hundred (200) feet from the nearest abutting residence or place of business.

(b) No person shall install or allow the installation of any OWHH that does not have a permanent attached stack that is at least five (5) feet higher than the peak of the structure it serves or of any residence or place of business located within three hundred (300) feet of the OWHH.

(c) Notwithstanding the above, the requirements of subsections (a) and (b) shall not apply to phase II OWHHs in the following zoning districts: agriculture residential (AR), rural residential (RR) and rural residential II (RR 2).
(Ord. No. 501, § 2, 10-8-08; Ord. No. 547, § 1, 5-11-2016)

Sec. 5-175. Permitting and operation.

(a) No person shall install or allow the installation of an OWHH without first:

- (1) Submitting written plans for the proposed OWHH, whether in hard copy or digitized format, including information that the specific OWHH to be installed and operated and the precise location of the proposed OWHH on the subject property conform in all respects to all federal state and local law and regulation;
- (2) Obtaining from the city's code enforcement office plumbing, electrical and building permits; and
- (3) Obtaining written approval of the proposed location from the Claremont Fire Department.

(b) No person shall operate or allow the operation of an OWHH without final inspection and approval by a code official of work performed under a duly issued applicable plumbing, wiring or building permit.

(c) All OWHH installed or operated within the City of Claremont must comply with all applicable federal, state and local laws and regulations.

(d) No residential size OWHH may be operated after May 15 and before September 15 of any year.

(e) All OWHH of whatever age or manufacture, shall be equipped with a properly functioning spark arrestor.
(Ord. No. 501, § 2, 10-8-08; Ord. No. 519, § 2, 3-9-2011)

Sec. 5-176. Notice upon conveyance.

Any person who installs, causes to be installed, or who operates an OWHH, upon sale, lease or other conveyance of the property served by an OWHH, shall provide the prospective

buyer, lessee or other person to be in possession of the property with information, including manufacturer's specifications, regarding the proper operation and maintenance of the OWHH.
(Ord. No. 501, § 2, 10-8-08)

Sec. 5-177. Compliance.

The provisions of this article shall apply to the installation and operation of all OWHHs permitted and installed on or after the effective date of this article. Notwithstanding the above, all OWHHs in operation as of the enactment of this article, are subject to compliance with this article, as well as all applicable local, state and federal laws and regulations, upon replacement of such OWHH or if such unit is found to be in disrepair, a nuisance or fails to comply with federal or state air quality emission requirements.

(Ord. No. 501, § 2, 10-8-08)

Sec. 5-178. Penalty; enforcement.

Whenever a code official finds that a person has violated any provision of this article, is installing or operating an OWHH in violation of this Code, or that the installation or operation of an OWHH constitutes a nuisance, the code official may issue an order of abatement pursuant to article I of this chapter 5.

Any person who is found in violation of any provision of this article IX shall be guilty of a violation and each day or fraction thereof shall constitute a separate offense and may be assessed an administrative fine for the first offense not to exceed two hundred seventy-five dollars (\$275.00) and not to exceed five hundred fifty dollars (\$550.00) for each separate subsequent offense.

(Ord. No. 501, § 2, 10-8-08; Ord. No. 542, § 1, 4-8-2015)

Sec. 5-179. Reserved.**ARTICLE X. INTERNATIONAL EXISTING BUILDING
CODE****Sec. 5-180. Purpose.**

The purpose of this article X is to provide flexibility to permit use of alternative approaches to repair and alterations of existing residential and non-residential property and structures in order to safeguard the public health, safety and welfare of the

city. Copies of the code related to existing building standards adopted herein shall be kept on file in the office of the city clerk and the office of the chief building and code enforcement officer, which copies shall all be for the use and examination by the public. This article X shall not apply to manufactured housing that is installed in compliance with United States Housing and Urban Development Regulations, 24 C.F.R. Part 3280, and New Hampshire RSA Chapter 205-D and Regulations Chapter Inst. (Ord. No. 522, § 1, 7-13-2011)

Sec. 5-181. International Existing Building Code adopted.

The International Existing Building Code 2009 ("IEBC"), and any amendments, revisions and re-adoptions thereto, is hereby adopted by reference.
(Ord. No. 522, § 1, 7-13-2011)

Sec. 5-182. Local modifications to International Existing Building Code.

The International Existing Building Code 2009, and any amendments, revisions and re-adoptions thereto, as adopted by section 5-181, is amended as follows for application to the City of Claremont. Where a conflict exists between the provisions of the IEBC and state or local law or regulation, the provisions of state or local law or regulation will govern.

1. All references to "applicable jurisdiction" are amended in all instances to the "City of Claremont."
2. All references to the International Fire Code are amended in all instances to currently adopted versions of the State Fire Code, as adopted by Department of Safety by regulation Part Saf-C 6015 and any other applicable state and local fire and life safety standards, including but not limited to NFPA 1 and NFPA 101.
3. All references to "change of occupancy" are amended in all instances to "change or expansion of use."
4. All references to "department of building safety" are amended in all instances to the "Building and Code Enforcement Office."

5. All references to the "chief appointing authority" are amended in all instances to the "City Manager."
 6. All references to "code official" are amended in all instances to the "Chief Building and Code Enforcement Officer or his or her designee."
 7. All references to codes and standards also include those adopted by the State of New Hampshire and the City of Claremont.
 8. All references to "site plan" are amended in all instances to "plot plan."
 9. Section 104.10 Modifications. Delete
 10. Section 112 Board of Appeals. Delete. Appeals under this Article X appeal shall be as set forth in Article II of this Chapter 5.
 11. Section 116 Emergency Measures. Delete
 12. Section 117 Demolition. Delete
- (Ord. No. 522, § 1, 7-13-2011)

Sec. 5-183. Notice on conveyance.

Notice of noncompliance with any provisions of this article X, whether based on actual or constructive knowledge of such deficiency, shall be included with the conveyance by any means of any interest in property or structures subject to the provisions of this article.

(Ord. No. 522, § 1, 7-13-2011)

